

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ELIJAH WHITE

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. TROY J. DRISCOLL, Shield No. 3867 (Tax Id. No. 966548), Individually and in his Official Capacity and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
March 14, 2023


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TO:

THE CITY OF NEW YORK
c/o SYLVIA HINDS-RADIX
Corporation Counsel of the City of New York
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P.O. TROY J. DRISCOLL, Shield No. 3867 (Tax Id. No. 966548)
Candidate Assessment Divison
235 East 20th St.
New York, NY 10003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ELIJAH WHITE,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. TROY J. DRISCOLL, Shield No. 3867 (Tax Id. No. 966548), Individually and in his Official Capacity and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiff ELIJAH WHITE by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff ELIJAH WHITE is an African American male and has been at all relevant times a resident of Kings County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department ("NYPD"), duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned the individually named defendants, P.O. TROY J. DRISCOLL, Shield No. 3867 (Tax Id. No. 966548) and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about April 1, 2022, plaintiff ELIJAH WHITE was lawfully in the vicinity of 465 Lexington Ave., in the County of Kings, City, and State of New York.

9. Plaintiff was lawfully in the vicinity of 465 Lexington Ave., Brooklyn, NY, at the direction of the process serving company (“SLS Litigation Services” and/or “SLS”) that he works for as an independent contractor, which was hired by the landlord (“Atanda F. Nuraina” and/or “Mr. Nuraina”) who owns the property at 465 Lexington Ave., Brooklyn, NY, to serve process, to wit, eviction notices, upon said landlord’s problem tenants who reside at said location.

10. Likewise, at approximately 5:30 p.m., on April 1, 2022, plaintiff, who is a licensed process server, went to 465 Lexington Ave. Brooklyn, NY to attempt service of said eviction notices on said problem tenants of said location, at the direction of the landlord, Mr. Nuraina, who is the custodian of said property and who had hired plaintiff and/or SLS to serve said eviction notices.

11. Upon arrival at the location, plaintiff knocked on the outside door of the building in order to effectuate service on the individuals therein, who he had been hired by Mr. Nuraina to effectuate service upon. However, plaintiff did not enter the building.

12. Immediately thereafter, in an attempt to evade service, several individuals, upon information and belief, said problem tenants, exited the property and began to chase plaintiff with weapons.

13. Plaintiff receded to his vehicle to get away from these armed individuals while attempting to explain to them that he was there to serve legal papers.

14. Subsequently, plaintiff drove his vehicle to the 79th Precinct, located nearby, in the vicinity of Tompkins Ave. between Lexington Ave. and Greene Ave.

15. Upon arrival at the 79th Precinct, plaintiff noticed police officers outside of same – upon information and belief, defendants DRISCOLL and/or POLICE OFFICERS “JOHN DOE” #1-10 – approached them and began to explain to them that he was a licensed process server and that he was being chased by individuals with weapons while attempting to serve them with legal paperwork that Mr. Nuraina had hired him/SLS to serve upon said individuals.

16. In addition, plaintiff showed these NYPD officers – upon information and belief, defendants DRISCOLL and/or “JOHN DOE” #1-10 – his New York City process servers license

and the legal paperwork he was attempting to serve. Said officers advised plaintiff to wait and plaintiff complied.

17. Several minutes later, and despite the fact plaintiff had not committed any crimes nor violations of the law and was merely attempting to perform his duties as a process server at the direction of the property owner, Mr. Nuraina, said officers – upon information and belief, defendant DRISCOLL and/or “JOHN DOE” #1-10 – placed plaintiff under arrest by handcuffing his arms tightly behind his back, searched his person and effects and brought him into the precinct.

18. No contraband was found on plaintiff's person and/or effects as a result of this search.

19. At no time on April 1, 2022, did defendants DRISCOLL and/or “JOHN DOE” #1-10 possess probable cause and/or reasonable suspicion to search plaintiff's person and/or effects nor did they obtain voluntary consent from him to do so.

20. At no time on April 1, 2022, did defendants DRISCOLL and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff's person and/or effects.

21. At no time on April 1, 2022, did defendants DRISCOLL and/or “JOHN DOE” #1-10 possess probable cause to arrest plaintiff.

22. At no time on April 1, 2022, did defendants DRISCOLL and/or “JOHN DOE” #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

23. At no time on April 1, 2022, did plaintiff possess any contraband, nor did plaintiff have custody and control over any contraband, nor did plaintiff commit any crimes or offenses or

behave unlawfully in any way, nor was any evidence and/or contraband found on plaintiff's person or in his effects.

24. Upon arrival at said precinct, plaintiff was searched again, fingerprinted, photographed, confined against his will in a holding cell for several hours, and charged with crimes by defendants DRISCOLL and/or "JOHN DOE" #1-10.

25. Specifically, defendants DRISCOLL and/or "JOHN DOE" #1-10 charged plaintiff with Criminal Mischief in the Fourth Degree. However, at no time did plaintiff commit the said crime nor any crimes or offenses, nor did he possess any contraband or have custody or control over same, nor did he behave unlawfully in any way.

26. In addition, upon arrival at the precinct, plaintiff called his employer, the process serving company SLS, who then contacted the landlord and custodian of the building, Mr. Nuraina.

27. Sometime thereafter, said landlord, Mr. Nuraina, came to the precinct and explained to the officers – upon information and belief, defendants DRISCOLL and/or "JOHN DOE" #1-10 – that he had hired plaintiff/SLS, to effectuate service of eviction notices on his behalf upon his problem tenants at the location referenced herein, that he was the custodian of said property referenced herein, and that plaintiff had not damaged his property, nor committed any crimes and/or offenses.

28. Nevertheless, said officers – upon information and belief, defendants DRISCOLL and/or "JOHN DOE" #1-10 – refused to release plaintiff from custody despite the fact they were aware that the custodian of the property, Mr. Nuraina, had advised them plaintiff had not done anything unlawful nor damaged any property at the above-mentioned location.

29. After being detained at said precinct for several hours, plaintiff was transported to Central Booking where he was searched, moved from cell to cell, and further detained until he was released following his arraignment.

30. Plaintiff spent approximately twenty-four (24) hours in custody as a result of the foregoing.

31. In addition, said NYPD officers – defendants DRISCOLL and/or “JOHN DOE” #1-10 – provided false and/or misleading information to the Kings County District Attorney’s and/or affirmatively omitted relevant information, which caused plaintiff to be maliciously prosecuted under Kings County Criminal Court Docket Number CR-008579-22KN and denied the right to a fair trial.

32. To the end, defendants DRISCOLL and/or “JOHN DOE” #1-10 filled out false and/or misleading police reports, which either affirmatively falsified and/or affirmatively omitted material information and forwarded them to prosecutors at the Kings County District Attorney’s Office. Thereafter, defendants DRISCOLL and/or “JOHN DOE” #1-10 repeated the aforementioned false and misleading information and/or continued to omit critical material information regarding the facts and circumstances of plaintiff’s arrest.

33. Specifically, defendants DRISCOLL and/or “JOHN DOE” #1-10 either falsely stated, *inter alia*, that one of the tenants who plaintiff was attempting to serve with eviction papers, and who was *not* the custodian of said property, was the custodian of the property, and/or defendants DRISCOLL and/or “JOHN DOE” #1-10 failed to inform prosecutors at the Kings County District Attorney’s Office that the landlord and true custodian of the property, Mr. Nuraina, had come to the precinct and advised them that plaintiff had not damaged any of his

property nor committed any crimes or offenses, and thus affirmatively omitted this critically relevant information.

34. However, said officers – defendants DRISCOLL and/or “JOHN DOE” #1-10 – were well-aware that this individual, the problem tenant who was being served with an eviction notice, was not the custodian of the property as the actual custodian, Mr. Nuraina, had come to the precinct after plaintiff was arrested and explicitly advised these officers that he was the custodian of the property and that plaintiff had not damaged same nor committed any crimes or offenses.

35. As a result, plaintiff was maliciously prosecuted and was forced to make one (1) additional court appearance, before all charges against him were dismissed and sealed in their entirety on or about June 7, 2022.

36. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, economic damages, physical injuries and pain, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

39. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

40. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

41. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

42. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

43. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

44. As a result of the aforesaid conduct by defendants DRISCOLL and/or “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants DRISCOLL and/or “JOHN DOE” #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

45. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

47. Defendant police officers DRISCOLL and/or “JOHN DOE” #1-10 misrepresented, falsified, and/or omitted evidence before the Kings County District Attorney.

48. Defendants DRISCOLL and/or “JOHN DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.

49. Defendants DRISCOLL and/or “JOHN DOE” #1-10 withheld exculpatory evidence from the District Attorney.

50. Defendants DRISCOLL and/or “JOHN DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

51. Defendants DRISCOLL and/or “JOHN DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

52. Defendants DRISCOLL and/or “JOHN DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.

53. Defendants DRISCOLL and/or “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

54. Defendants DRISCOLL and/or “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

55. Defendants DRISCOLL and/or “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

56. Defendants DRISCOLL and/or “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

57. Specifically, defendants DRISCOLL and/or “JOHN DOE” #1-10 either falsely stated, *inter alia*, that one of the tenants who plaintiff was attempting to serve with eviction papers, and who was *not* the custodian of said property, was the custodian of the property, and/or defendants DRISCOLL and/or “JOHN DOE” #1-10 failed to inform prosecutors at the Kings County District Attorney’s Office that the landlord and true custodian of the property had come to the precinct and advised them that plaintiff had not damaged any of his property nor committed any crimes or offenses, and thus affirmatively omitted this critically relevant information.

58. Notwithstanding the perjurious and fraudulent conduct of defendants DRISCOLL and/or “JOHN DOE” #1-10, the criminal proceeding against plaintiff was dismissed in its entirety on or about June 7, 2022.

59. As a result of this prosecution, plaintiff spent approximately twenty-four (24) hours in custody and had to make two (2) court appearances before the charges against him were dismissed.

60. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

62. Defendants DRISCOLL and/or “JOHN DOE” #1-10 created false evidence against the plaintiff.

63. Defendants DRISCOLL and/or “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office and/or affirmatively omitted critical relevant evidence – namely, the defendants either falsely stated, *inter alia*, that one of the tenants who plaintiff was attempting to serve with eviction papers, and who was *not* the custodian of said property, was the custodian of the property, and/or defendants DRISCOLL and/or “JOHN DOE” #1-10 failed to inform prosecutors at the Kings County District Attorney’s Office that the landlord and true custodian of the property had come to the precinct and advised them that plaintiff had not damaged any of his property nor committed any crimes or offenses, and thus affirmatively omitted this critically relevant information.

64. Defendants DRISCOLL and/or “JOHN DOE” #1-10 misled the prosecutors by creating false evidence against the plaintiff and/or affirmatively omitting relevant evidence and thereafter providing the aforementioned false statements and/or omitting said relevant evidence throughout the criminal proceedings.

65. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, and in affirmatively omitting critically relevant evidence, defendants DRISCOLL and/or “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

66. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

67. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

68. Defendants DRISCOLL and/or “JOHN DOE” #1-10 had an affirmative duty, and the opportunity to intercede when plaintiff’s constitutional rights were being violated in defendants’ DRISCOLL and/or “JOHN DOE” #1-10 presence by the fabrication and/or omission of evidence.

69. Defendants DRISCOLL and/or “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

70. As a result of the defendants’ DRISCOLL and/or “JOHN DOE” #1-10 failure to intercede when plaintiff’s constitutional rights were being violated in defendants’ DRISCOLL and/or “JOHN DOE” #1-10 presence, plaintiff sustained, *inter alia*, physical injuries, loss of liberty, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

72. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

73. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating and/or omitting evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- E. fabricating and/or omitting evidence in connection with individual(s) arrest(s)/prosecution(s) notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing, for the purpose of obtaining overtime compensation; and,
- F. failing to intercede to prevent violations of plaintiff's constitutional rights; and
- G. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, omit evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

74. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiffs.

75. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

76. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

77. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

78. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

79. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

PENDANT NEW YORK STATE AND NEW YORK CITY CLAIMS

PROCEDURAL REQUIREMENTS

80. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

81. On or about July 14, 2022, within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to, and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

82. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

83. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on October 28, 2022.

84. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

85. Plaintiff has complied with all conditions precedent to maintaining the instant action.

86. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

CLAIMS ARISING UNDER NEW YORK STATE LAW

FIRST CLAIM FOR RELIEF
FALSE ARREST/IMPRISONMENT

87. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

88. Defendant police officers DRISCOLL and/or “JOHN DOE” #1-10 arrested plaintiff in the absence of probable cause and without a warrant.

89. As a result of the foregoing, plaintiff was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and humiliated and subjected to handcuffing and other physical restraints.

90. Plaintiff was conscious of said confinement and did not consent to the same.

91. The confinement of plaintiff was without probable cause and was not otherwise privileged.

92. As a result of the aforesaid conduct by defendants DRISCOLL and/or “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants and taken into custody, and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by defendants DRISCOLL and/or “JOHN DOE” #1-10 constituted a deprivation of plaintiff’s rights.

93. As a result of the aforementioned conduct, plaintiff has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright, and loss of freedom.

SECOND CLAIM FOR RELIEF
MALICIOUS PROSECUTION

94. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

95. Defendants DRISCOLL and/or “JOHN DOE” #1-10 misrepresented and falsified and/or omitted evidence before the Kings County District Attorney.

96. Defendants DRISCOLL and/or “JOHN DOE” #1-10 did not make a complete and full statement of facts to the District Attorney.

97. Defendants DRISCOLL and/or “JOHN DOE” #1-10 withheld exculpatory evidence from the District Attorney.

98. Defendants DRISCOLL and/or “JOHN DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against plaintiff.

99. Defendants DRISCOLL and/or “JOHN DOE” #1-10 lacked probable cause to initiate criminal proceedings against plaintiff.

100. Defendants DRISCOLL and/or “JOHN DOE” #1-10 acted with malice in initiating criminal proceedings against plaintiff.

101. Defendants DRISCOLL and/or “JOHN DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against plaintiff.

102. Defendants DRISCOLL and/or “JOHN DOE” #1-10 lacked probable cause to continue criminal proceedings against plaintiff.

103. Defendants DRISCOLL and/or “JOHN DOE” #1-10 acted with malice in continuing criminal proceedings against plaintiff.

104. Defendants DRISCOLL and/or “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.

105. Specifically, defendants DRISCOLL and/or “JOHN DOE” #1-10 either falsely stated, *inter alia*, that one of the tenants who plaintiff was attempting to serve with eviction papers, and who was *not* the custodian of said property, was the custodian of the property, and/or defendants DRISCOLL and/or “JOHN DOE” #1-10 failed to inform prosecutors at the Kings County District Attorney’s Office that the landlord and true custodian of the property had come to the precinct and advised them that plaintiff had not damaged any of his property nor committed any crimes or offenses, and thus affirmatively omitted this critically relevant information.

106. Notwithstanding the perjurious and fraudulent conduct of defendants DRISCOLL and/or “JOHN DOE” #1-10, the criminal proceeding against plaintiff was dismissed in its entirety on or about June 7, 2022.

107. As a result of this prosecution, plaintiff spent approximately twenty-four (24) hours in custody and had to make two (2) court appearances before the charges against him were dismissed.

108. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he lost wages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF
ASSAULT

109. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

110. Defendants' DRISCOLL and/or "JOHN DOE" #1-10 aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

111. As a result of defendants' DRISCOLL and/or "JOHN DOE" #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

FOURTH CLAIM FOR RELIEF
BATTERY

112. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

113. Defendant police officers DRISCOLL and/or "JOHN DOE" #1-10 touched plaintiff in a harmful and offensive manner.

114. Defendant police officers DRISCOLL and/or "JOHN DOE" #1-10 did so without privilege or consent from plaintiff.

115. As a result of defendants' DRISCOLL and/or "JOHN DOE" #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FIFTH CLAIM FOR RELIEF
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

116. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

117. The aforementioned conduct by defendants DRISCOLL and/or “JOHN DOE” #1-10 was extreme and outrageous, and exceeded all reasonable bounds of decency.

118. The aforementioned conduct was committed by defendants DRISCOLL and/or “JOHN DOE” #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

119. The aforementioned conduct was committed by defendants DRISCOLL and/or “JOHN DOE” #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

120. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

121. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright, and loss of freedom.

SIXTH CLAIM FOR RELIEF
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

122. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

123. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

124. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

125. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain, and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

CITY LAW CLAIMS PURSUANT TO 2021 N.Y.C. LOCAL LAW NO. 48
N.Y.C. ADMIN. CODE §§ 8 – 8802, ET SEQ.

FIRST CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – UNREASONABLE SEARCH & SEIZURE

126. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

127. The acts of defendants DRISCOLL and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

128. The acts of DRISCOLL and/or “JOHN DOE” #1-10 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

129. Defendants DRISCOLL and/or “JOHN DOE” #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully seized, frisked, and searched the plaintiff, before detaining plaintiff and further causing his detention for approximately twenty-four (24) hours in total.

130. By reason of the acts and omissions by defendants DRISCOLL and/or “JOHN DOE” #1-10 as described above, plaintiff has endured *inter alia*, loss of liberty, physical injuries,

economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, and was otherwise damaged and/or injured.

SECOND CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – FAILURE TO INTERVENE

131. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

132. The acts of defendants DRISCOLL and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

133. Defendants DRISCOLL and/or “JOHN DOE” #1-10 had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

134. The defendants that did not engage in the unreasonable search and seizure of plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

135. Defendants DRISCOLL and/or “JOHN DOE” #1-10 failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from a violation of his rights.

136. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

FOURTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – CITY LIABILITY
UNREASONABLE SEARCH/SEIZURE

137. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

138. Defendants DRISCOLL and/or “JOHN DOE” #1-10 are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as Special Patrolmen.

139. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants DRISCOLL and/or “JOHN DOE” #1-10 is liable to the plaintiff for the wrongdoing of the covered individual defendants DRISCOLL and/or “JOHN DOE” #1-10.

140. The acts of defendants DRISCOLL and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

141. The acts of DRISCOLL and/or “JOHN DOE” #1-10 caused plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

142. That defendants DRISCOLL and/or “JOHN DOE” #1-10, while acting in the scope of their employment for THE CITY OF NEW YORK as police officers, unlawfully searched/seized plaintiff.

143. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages,

emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

**FIFTH CLAIM FOR RELIEF UNDER N.Y.C. LAW
VIOLATION OF AC-8-8802 RIGHTS – CITY LIABILITY FAILURE TO INTERVENE**

144. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

145. Defendants DRISCOLL and/or “JOHN DOE” #1-10 are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8-8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

146. Defendant THE CITY OF NEW YORK as the employer of the covered individual defendants DRISCOLL and/or “JOHN DOE” #1-10 is liable to the plaintiff for the wrongdoing of the covered individual defendants DRISCOLL and/or “JOHN DOE” #1-10.

147. The acts of defendants DRISCOLL and/or “JOHN DOE” #1-10 constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

148. Defendants DRISCOLL and/or “JOHN DOE” #1-10 had a duty to protect plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures.

149. The defendants that did not engage in the unreasonable search and seizure of plaintiff and/or the excessive force against plaintiff as outlined above, but were present when other officers violated those rights of plaintiff, had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

150. Defendants DRISCOLL and/or “JOHN DOE” #1-10 failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect plaintiff from a violation of his rights.

151. As a direct and proximate result of the foregoing conduct of the defendants as set forth above, plaintiff, sustained, *inter alia*, loss of liberty, physical injuries, economic damages, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of constitutional rights.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys’ fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys’ fees, interest, costs, and disbursements of this action.

Dated: New York, New York
March 14, 2023

BY: 
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
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ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff ELIJAH WHITE in the within-entitled action.

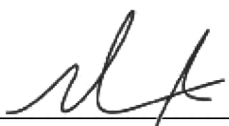
That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
March 14, 2023



ILYSSA S. FUCHS